

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ELIZABETH RIVERA, as parent and proposed guardian
of JUAN RIVERA,

Plaintiffs,

-against-

CITY OF NEW YORK and P.O. DANIEL GERARDI
(Tax ID 953902),Defendants.
-----X**SUMMONS**Plaintiffs designate
KINGS County
as the place of trial.The basis of the venue is
County of OccurrencePlaintiffs reside at
111 Etna Street
Brooklyn, NY 11208Index No.:
Date Summons &
Complaint Filed:**To the above named Defendant(s)**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Port Washington, NY
August 26, 2016By: 

Fred R. Rosenthal

Parker Waichman LLP*Office & Post Office Address:*

6 Harbor Park Drive

Port Washington, NY 11050

(516) 466-6500

Our File No.: 5011329

TO: CITY OF NEW YORK
Office of the Comptroller
1 Centre Street
New York, NY 10007P.O. DANIEL GERARDI (Tax ID 953902)
c/o New York City Police Department
1 Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ELIZABETH RIVERA, as parent and proposed guardian
of JUAN RIVERA,

Plaintiffs,

VERIFIED COMPLAINT

Index No.:

-against-

CITY OF NEW YORK and P.O. DANIEL GERARDI
(Tax ID 953902),
,

Defendants.
-----X

Plaintiffs, by their attorneys, Parker Waichman LLP, as and for a cause of action,
respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF JUAN RIVERA**

1) That at the time of the commencement of this action, plaintiffs, JUAN RIVERA
and ELIZABETH RIVERA were and still are residents in the County of Kings, State of New
York.

2) That on May 31, 2015 and at all times herein mentioned, plaintiff, ELIZABETH
RIVERA, was the parent of plaintiff, JUAN RIVERA and his proposed guardian.

3) That on May 31, 2015 and at all times herein mentioned, defendant, CITY OF
NEW YORK, was and still is a domestic municipal corporation.

4) That on May 31, 2015 and at all times herein mentioned the New York
City Police Department, was and still is a domestic municipal corporation.

5) That on May 31, 2015 and at all times herein, defendant, P.O. DANIEL
GERARDI, responded to an incident which occurred on May 31, 2015 at approximately
12:30P.M. on the sidewalk in front of 40 Norwood Avenue, in the County of Kings, State of
New York.

6) That on May 31, 2015 and at all times herein mentioned, defendant, P.O.

DANIEL GERARDI, was and still is a resident of the State of New York.

7) That the cause of action alleged herein arose in the County of Kings, State of New York.

8) That this action falls within one or more of the exemptions set forth in CPLR §1602, §1602(1), §1602(2), §1602(3), §1602(4), §1602(5), §1602(6), §1602(7), §1602(8), §1602(9), §1602(10), §1602(11), §1602(12) and §1603.

9) That on May 31, 2015 and at all times herein mentioned, New York City Police Department, was and still is a department within the City of New York and its employees are employees of the defendant, CITY OF NEW YORK.

10) That on August 07, 2015, a Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiffs' demands for adjustment thereof were duly served on the plaintiff's behalf on the CITY OF NEW YORK and that thereafter said CITY OF NEW YORK refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

11) That this action is being commenced within one year and ninety days after accrual of this cause of action or within the time allowed by law.

12) That on May 31, 2015 and at all times herein mentioned, defendant, P.O. DANIEL GERARDI, was acting as an agent, servant and/or employee of the defendant, CITY OF NEW YORK.

13) That on May 31, 2015 and at all times herein mentioned, defendant, P.O. DANIEL GERARDI, was acting as an agent, servant and/or employee of the New York City Police Department.

14) That on May 31, 2015 and at all times herein mentioned, defendant, P.O. DANIEL GERARDI, was employed by defendant, CITY OF NEW YORK.

15) That on May 31, 2015 and at all times herein mentioned, defendant, P.O. DANIEL GERARDI, was employed by the New York City Police Department.

16) That on May 31, 2015 and at all times herein mentioned, defendant, P.O.

DANIEL GERARDI, was acting in the furtherance of his employment with defendant, CITY OF NEW YORK.

17) That on May 31, 2015 and at all times herein mentioned, defendant, P.O. DANIEL GERARDI, was acting in the furtherance of his employment with the New York City Police Department.

18) That on May 31, 2015 and at all times herein mentioned, defendant, P.O. DANIEL GERARDI, was present at the aforesaid location in connection with, and in furtherance of, the business then and there being conducted by defendant, CITY OF NEW YORK.

19) That on May 31, 2015 and at all times herein mentioned, defendant, P.O. DANIEL GERARDI, was present at the aforesaid location in connection with, and in furtherance of, the business then and there being conducted by the New York City Police Department.

20) That on May 31, 2015, the defendants responded to a complaint and/or call at 40 Norwood Avenue, in the County of Kings, State of New York.

21) That on May 31, 2015, plaintiff, JUAN RIVERA, was a lawful pedestrian on the sidewalk located in front of 40 Norwood Avenue, in the County of Kings, State of New York.

22) That on May 31, 2015, while plaintiff, JUAN RIVERA, was a lawful pedestrian at the aforesaid location, he was violently and viciously, maliciously and brutally assaulted and falsely arrested by defendant, P.O. DANIEL GERARDI.

23) That on May 31, 2015, defendant, CITY OF NEW YORK, failed to protect plaintiff from defendant, P.O. DANIEL GERARDI.

24) That the defendants, their agents, servants and/or employees were otherwise negligent, reckless, careless and grossly negligent in allowing and/or permitting the plaintiff to become a victim of an assault, false arrest and contact by defendants, P.O. DANIEL GERARDI, while at the aforesaid location; in carelessly, recklessly and negligently retaining plaintiff, JUAN RIVERA; in failing to properly train their agents, servants and/or employees; in failing to properly supervise the activities of the defendants, P.O. DANIEL GERARDI; in departing from reasonable procedures with regard to providing the safety of the public; in carelessly, recklessly and negligently causing, allowing and/or permitting defendants, P.O. DANIEL to assault, falsely arrest and make contact with the plaintiff; in wrongfully causing, allowing and/or permitting

defendant, P.O. DANIEL GERARDI, to approach, menace and attack the plaintiff; and in being otherwise careless, reckless and negligent.

25) That by reason of the foregoing, plaintiff, JUAN RIVERA, sustained severe and permanent personal injuries, became sick, sore, lame and disabled, suffered mental anguish, pain and suffering, loss of quality and/or enjoyment of life, was confined to hospital, bed and home and may, in the future, be so confined; was incapacitated from attending his usual duties and may in the future, be so incapacitated and plaintiff was otherwise damaged.

26) That plaintiff, JUAN RIVERA in no way contributed to, caused or provoked the aforesaid incident.

27) That as a result of the aforesaid, plaintiff, JUAN RIVERA has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF JUAN RIVERA**

28) That at all times hereinafter mentioned, plaintiff, JUAN RIVERA, repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint herein, as though more fully set forth herein at length.

29) That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, in its regular course of business, hired the employees within the New York City Police Department.

30) That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, in its regular course of business, trained the employees within the New York City Police Department.

31) That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, in its regular course of business, managed the employees within the New York City Police Department.

32) That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, in

its regular course of business, controlled the employees within the New York City Police Department.

33) That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, in its regular course of business supervised the employees within the New York City Police Department.

34) That at all times hereinafter mentioned, the New York City Police Department, in its regular course of business, hired the employees within the New York City Police Department.

35) That at all times hereinafter mentioned, the New York City Police Department, in its regular course of business, trained the employees within the New York City Police Department.

36) That at all times hereinafter mentioned, the New York City Police Department, in its regular course of business, managed the employees within the New York City Police Department.

37) That at all times hereinafter mentioned, the New York City Police Department, in its regular course of business, controlled the employees within the New York City Police Department.

38) That at all times hereinafter mentioned, the New York City Police Department, in its regular course of business, supervised the employees within the New York City Police Department.

39) That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, managed, controlled and supervised the actions of their employees.

40) That at all times hereinafter mentioned, the New York City Police Department, managed, controlled and supervised the actions of their employees.

41) That at all times hereinafter mentioned, the agents, servants and staff of the defendant, CITY OF NEW YORK, were acting within the scope of their employment.

42) That at all times hereinafter mentioned, the agents, servants and staff of the

New York City Police Department, were acting within the scope of their employment.

43) That on May 31, 2015, while the plaintiff, JUAN RIVERA, was a lawful pedestrian, plaintiff was, without provocation, justification or cause, violently and viciously, maliciously and brutally assaulted.

44) That the aforesaid assault occurred without justification, cause or warrant.

45) That the aforesaid was due solely to the negligence, carelessness, recklessness and gross negligence of the defendants in their hiring, training, supervision, retention and control of their agents, servants, employees and through no fault or lack of care on the part of the plaintiff.

46) That the defendants were otherwise negligent, careless and grossly negligent.

47) As a result of the aforesaid, plaintiff, JUAN RIVERA has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF JUAN RIVERA**

48) Plaintiff repeats, reiterates and realleges each and every allegation contained herein above, with the same force and effect as if set forth herein at length.

49) That on May 31, 2015 while plaintiff, JUAN RIVERA, was a lawful pedestrian, plaintiff was violently and viciously struck, assaulted, battered, beaten, pushed, shoved, thrown, chased, falsely arrested and confined and seriously injured by the defendants, P.O. DANIEL GERARDI without just cause or provocation.

50) That by reason of the foregoing, plaintiff, JUAN RIVERA, sustained severe and permanent personal injuries, became sick, sore, lame and disabled, suffered mental anguish, pain and suffering, loss of quality and/or enjoyment of life, was confined to hospital, bed and home and may, in the future, be so confined; was incapacitated from attending his usual duties and may in the future, be so incapacitated and plaintiff was otherwise damaged for violation of

claimants' civil rights

51) That as a result of the aforesaid, plaintiff, JUAN RIVERA has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF JUAN RIVERA**

52) Plaintiff repeats, reiterates and realleges each and every allegation contained herein above, with the same force and effect as if set forth at length herein.

53) That at all times hereinafter mentioned, plaintiff, JUAN RIVERA was assaulted by defendant, P.O. DANIEL GERARDI.

54) That at all times hereinafter mentioned, defendant, P.O. DANIEL GERARDI, knowingly and maliciously caused injury to the plaintiff herein by assaulting, battering and making improper contact with the plaintiff.

55) That at all times hereinafter mentioned, there was no justification or excuse for the willful assault of the plaintiff, JUAN RIVERA by defendant, P.O. DANIEL GERARDI.

56) That as a result of the aforesaid, plaintiff, JUAN RIVERA has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF JUAN RIVERA**

57) Plaintiff repeats, reiterates and realleges each and every allegation contained herein above, with the same force and effect as if set forth as length herein.

58) That the defendants falsely arrested and falsely imprisoned plaintiff, JUAN RIVERA.

59) That the aforesaid assault occurred without justification, cause or warrant for false arrest and false imprisonment.

60) That as a result of the aforesaid, plaintiff, JUAN RIVERA has been damaged in

an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF JUAN RIVERA**

61) Plaintiff repeats, reiterates and realleges each and every allegation contained herein above, with the same force and effect as if set forth at length herein.

62) That defendant, CITY OF NEW YORK, knew or by the exercise of due care should have known of the gross negligence, carelessness, recklessness and wanton disregard of the safety and wellbeing of the plaintiff, JUAN RIVERA, and the intentional malicious conduct exhibited by the defendant, P.O. DANIEL GERARDI, plaintiff is entitled to punitive damages.

63) That as a result of the aforesaid plaintiff, JUAN RIVERA has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF JUAN RIVERA**

64) Plaintiff repeats, reiterates and realleges each and every allegation contained herein above, with the same force and effect as if set forth at length herein.

65) Upon information and belief, at all times hereinafter mentioned, defendants failed to comply with and were in violation of statutes or requirements of Federal, State, City and/or local governments then and there existing, including but not limited to, United States Code 1981(a) and 1983 and New York State Constitution §§11.

66) That the injuries sustained by plaintiff, JUAN RIVERA, was caused by the defendants, their agents, servants and/or employees as a result of the negligence in failing to comply with the applicable statutes and requirements of Federal, State, City and/or local governments or any and all of their departments, divisions and bureaus and plaintiff claims defendant to be liable to him for his injuries.

67) The injuries sustained by the plaintiff herein were sustained without any fault,

want of care or culpable conduct on the part of the plaintiff herein, but solely by virtue of the neglect, omission, willful or culpable negligence of the defendant in failing to comply with statutes and/or requirements of State, City and/or local governments then and there existing as herein above set forth.

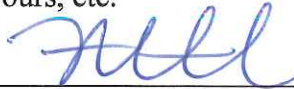
68) The injuries sustained by the plaintiff, JUAN RIVERA, occurred in the manner as hereinabove stated and based upon these facts it may be inferred that defendants' negligence directly caused the harm to the plaintiff.

69) That as a result of the foregoing, plaintiff, JUAN RIVERA, was damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs, JUAN RIVERA and ELIZABETH RIVERA, demand judgment against the defendants, in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction, together with such just and proper relief as this Court deems just and necessary.

Dated: August 26, 2016
Port Washington, New York

Yours, etc.



Fred R. Rosenthal
Parker Waichman LLP.
Attorneys for Plaintiffs
6 Harbor Park Drive
Port Washington, NY 11050
(516) 466-6500
Our File No.: 5011329

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)

: ss :

COUNTY OF NASSAU)

Fred R. Rosenthal, an attorney and counselor at law, duly admitted to practice in the Courts of the State of New York, affirms the following to be true under penalties of perjury:

I am the Managing Attorney of the firm Parker Waichman LLP attorneys for the plaintiffs herein.

I have read the foregoing **COMPLAINT** and know the contents thereof. Upon information and belief, I believe the matters alleged therein to be true.

The source of your deponent's information and the grounds of my belief are communications, papers, reports and investigations contained in my file.

The reason this verification is made by deponent and not by plaintiffs is that plaintiffs reside in a county other than the one in which your deponent's office is maintained.

Dated: Port Washington, NY
August 26, 2016



Fred R. Rosenthal

Parker Waichman LLP

Index No.

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF *Kings*

ELIZABETH RIVERA, as parent and proposed guardian
of JUAN RIVERA,

Plaintiffs,

-against-

CITY OF NEW YORK, and P.O. DANIEL GERARDI
(Tax ID 953902),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Certification per 22NYCRR §130-1.1a

[Signature]
Fred R. Rosenthal
Parker Waichman LLP
Attorneys for Plaintiff(s)
6 Harbor Park Drive
Port Washington, NY 11050
(516) 466-6500

To:
Attorney(s) for

Service of a copy of the within is hereby admitted.

Dated:
Attorney(s) for

PLEASE TAKE NOTICE

NOTICE OF

ENTRY that the within is a (certified) true copy of a entered in the office of the Clerk of the within named
Court on 20 ,

NOTICE that an Order of which the within is a true copy will be presented to the Hon. , one of the
OF

SETTLEMENT judges of the within named Court, at ,
, on
2013, at M.

Dated: August 25, 2016

Parker Waichman LLP
Attorneys for Plaintiff(s)